

School: Scarning Pre-School

Date: 02/02/2022

Report: Remote consultation for Autumn Term 21 & Spring Term 22 Agenda

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Pre School member: Jenni Matsell

Consultation details

- DPE website – changes to dashboard and managing staff changes
- Compliance update – review of policies
- The Children's Code – "Age appropriate design code", child friendly Privacy Notices
- Due Diligence - Consideration of New Business Processes
- Information Security and Cyber Awareness
- Data Retention
- Review of training / accessing training records on Knowledge Bank
- Electronic Audit - Making the Rounds
- DPE Online Workshops
- Review of the school's progress to date with populating the RoP and reporting functions

DPE website/best practice including news updates

The Dashboard - There is a new look to the dashboard and previous details relating to Tickets / Data Rights Log (formerly known as SARs)/ Data Breaches / FOIs have been archived, but can still be accessed in the same way.

Managing staff changes - To set up new staff on the DPE website and delete leavers go to DPE dashboard>users>add staff, either manually or bulk import. Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education

Compliance Update – review of policies

The school reports that it is in the process of developing a new website and the Data Protection Policy and Privacy Notice are ready for uploading.

Data Breach and SAR Procedure - Do all staff understand your organisation's data breach and SAR procedure? Review the DPE consent guidance and consent forms; does data displayed around the pre-school and on the website correlate with your current documentation? Is there data still displayed relating to children who have left the pre-school?

The Children's Code - This is a new code of practice which came in to force on the 2.9.21. The code has been created to protect the use of children's personal information and impacts on security measures that are

required in applications relating to Education Technology providers as well as online games/platforms used by children, as well as Facebook, Tik Tok, Instagram, Whatsapp and other social media.

The full ICO statement on The Children's Code can be read via a link available on Knowledge Bank under the News section. It is worth noting that The Children's Code is otherwise known as "Age Appropriate Design Code", which further supports the ICO's requirements for child friendly Privacy Notices to be adopted by schools.

DPE's Child Friendly Privacy Notices can be downloaded from the Best Practice Resource Area – under the heading of 'Transparency'.

<https://dataprotection.education/news-top/news/147-public-updates/201-the-children-s-code>

Supplier Due Diligence

If the school is considering introducing any new business processes which involves the processing of personal data, it is the school's responsibility, acting as a data controller, for assessing that any third party processors (suppliers etc) are competent to process personal data in line with the UK GDPR's requirements.

This assessment should take into account the nature of the processing and the risks to the data subjects. This is because Article 28(1) says a controller must only use a processor that can provide "sufficient guarantees" (in particular in terms of its expert knowledge, resources and reliability) to implement appropriate technical and organisational measures to ensure the processing complies with the UK GDPR and protects the rights of individuals.

Things to consider:

- Privacy notice/third party/supplier list - is this up to date, do you know all the organisations/suppliers you share information with?
- Due diligence form - this can be sent to new suppliers
- Make sure that current and future contracts include data protection
- Risks - what you should be thinking of when purchasing and using new products and suppliers
- If using GDPRiS for maintaining suppliers, make sure that this is updated and accurate

DPEs best practice area and the due diligence form for suppliers is located here:

<https://dataprotection.education/index.php/best-practice-library/best-practice/due-diligence-best-practice-area>

A supplier checklist can be found on Knowledge Bank and it is best practice to complete such questions prior to signing up to any new provider.

Information Security (phishing simulation) and e-learning Training

There has been a significant increase in the number of cyber attacks and bogus emails received by Norfolk Schools. The ICO recognise that the education sector is now at the greatest risk from these threats and urge schools to remain vigilant, ensure that staff have raised awareness and can therefore reduce the risk of such threats.

DPE have a number of resources for information security: <https://dataprotection.education/best-practice-library/documents/information-technology-security>

If not already, staff should complete the **Stay Safe online NCSC training**. This is not only beneficial for the organisation but also for staff when accessing personal information online i.e. personal banking: <https://dataprotection.education/courses-heading/stay-safe-online-ncsc>

There is also an information classification best practice area: <https://dataprotection.education/index.php/best-practice-library/best-practice/information-classification>

Actions:

- As there have been some security concerns within the sector ask your IT provider to complete the cyber essentials questionnaire: <https://dataprotection.education/best-practice-library/documents/information-technology-security>
- Consider staff completing the DPE NCSC stay safe online training.

Phishing Simulations – DPE have designed a number of phishing simulations which will be available shortly on Knowledge Bank. These will help schools check their staff's awareness and resilience at recognizing anything that may be detrimental to the school's information / data security – such as accessing emails that lead to ransomware-attacks and cyber-attacks. Lindsey Smith, DPE Consultant, will help with the implementation of the phishing simulations.

Data Retention

Organisations can set deadlines, document and justify timeframes they have set for retaining data. There are **two key factors**: the **purpose** for processing the data, and any **legal or regulatory requirements** for **retaining it**. One of your purposes will need to apply for you to continue to store the data. Data should not be held for longer than is needed. You shouldn't just keep data just in case you may need it in the future.

Different data systems to consider when reviewing data retention:

- Emails
- MIS
- Website
- Network/CLOUD

Tools to support you:

- There are a number of tools to support you with data retention: [IRMS](#) tool kit
- DPE's [record management](#) best practice area and records management policy
- [DfE](#) Annual review of school records and safe data destruction checklist
- [ICO](#)
- DPEs [Record of Processing \(RoP\)](#)

- Your third party list within your privacy notice
- Laws and regulations (for example, financial regulations and handbooks and limitations act:
[https://www.legislation.gov.uk/ukpga/1980/58/legislation:](https://www.legislation.gov.uk/ukpga/1980/58/legislation)
<https://www.legislation.gov.uk/ukxi/2021/833/contents/made>)
- [Microsoft retention tools](#)
- [Google retention tools](#)
- [MIS retention tools](#)
- Network scanning and retention tools - speak to your IT department

Review of Training

LM demonstrated how to use the dashboard to identify training that has been completed and also note training that is outstanding. The ICO recommends that the GDPR 101 is included in the new staff induction process and that a refresher is completed every 2 years.

When checking staff training for GDPR 101 it appears that the majority of staff completed this course in 2019 and therefore due to complete a refresher in GDPR. A GDPR 20-minute refresher is available on Knowledge Bank.

Electronic internal audit (making the rounds)

LM demonstrated the online audit walk template during the consultation. The template can be used on either a laptop / ipad or tablet to record the findings from a self-audit of the school premises.

Actions:

- The school has the option to complete their own end of day walk and report findings back to staff (raising awareness).

DPE Online workshops

- Check out the latest webinars and workshops from the My Activities section of the DPE website. The next workshop is a **data retention workshop** on the 10th February:
<https://dataprotection.education/courses-heading/dpe-events>

Record of Processing (RoP) - and DPE methodology

LM has worked with Claire (pre-school treasurer) during Spring and Summer 2021 to complete the pre-school's RoPs relating to financial management.

Step 1 - a general introduction to the RoP tool with a brief overview of the generic process relating to financial/management of the school – this was carried at the time of the meeting on the 11.2.21

Step 2- a more in depth look at the RoP with key process owners and how completing the master lists will ensure the school reflects the technical measures and procedures it has in place to safeguard personal data – this was carried out at the time of the meeting on the 24.3.21.

Action: School to review and complete the HR RoPs. Jenni and Claire will work together to complete this task.